

25STCV25443 25STCV25443

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-07-17

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Case Number: 25STCV25443 Hearing Date: July 17, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 07/17/2026

CASE NUMBER: 25STCV25443

CASE NAME: Reaps Co. LLC. v. Schoenhoeft et al.

MOVING PARTY: Defendants Hicks and Shoenhoeft

OPPOSING PARTY: Plaintiff Reaps Company LLC

PROCEEDING: Motion to Dismiss

RULING

SUMMARY: Defendants Shcoenhoeft
and Hicks Motion to Dismiss is denied.

Defendants Schoenhoeft and Hicks filed a Motion to Dismiss
the Complaint on April 13, 2026. No Opposition
has been filed.

The Motion is denied for the following reasons:

1.

Defendants base the motion on Code of Civil
Procedure section 437(c). Section 437
contains no subdivision (c).

2.

The Complaint seeks recovery from Defendants on theories of alter ego, avoidance and recovery of intentional fraudulent transfer and related claims. Defendants' grounds for their motion are that the prior judgment on which the pending action is based did not name them as a defendant, and that there are no grounds for personal liability based on that judgment. Defendants are asking this Court to make determinations of disputed factual issues, but such a determination may not be the basis of a motion to dismiss. To the extent that Defendants intended to file a motion for summary judgment under Code of Civil Procedure section 437c, they have entirely failed to make the required showing by offering admissible evidence through declarations that there are no disputed issues of material fact and that they are entitled to judgment as a matter of law.

3.

Defendants have failed to follow the basic rules for a motion, including preparing a notice of motion for the motion, or submitting a proper proof of service pursuant to Code of Civil Procedure section 1013b.

Date: 07/16/2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court